ARIZONA DEPARTMENT OF HEALTH SERVICES

LICENSING

July 16, 2024

The Giving Tree Wellness Center of North Phoenix Inc.
ATTN: Lilach Power
701 West Union Hills Drive
Phoenix, AZ 85027

RE: INSP-0044433

Dear Ms. Power:

The purpose of this letter is to inform you that during a recent compliance inspection (INSP-00044433), conducted on May 28, 2024, by the Arizona Department of Health Services, the Department cited violations in one or more areas that are repeat violations of the same statutes or rules cited previously during routine compliance inspections.

The Statement of Deficiencies ("SOD"), sent on June 27, 2024, describes the violations cited. Because the case has been referred to the Enforcement Team, and the Informal Dispute Resolution ("IDR") period has passed or the IDR has been reviewed and the citations were upheld, the Department is requesting $4,000.00 in Civil Money Penalties ("CMP"), along with a written plan of correction for the violations.

Please review, sign and return the enclosed Civil Money Penalty ("CMP") agreement forms and return to the Department by July 23, 2024.

Once the forms are completed, returned, and signed by the Department, the Department will open an Enforcement and an Invoice in the Facility Licensing Portal. Both the CMP and Plan of Corrections must be submitted through the portal within thirty (30) calendar days of the Effective Date. To submit a Plan of Correction, please see pages 103-105 of the PO/BM Handbook.

If you have any questions, please call our office at (602) 364-0857.

Sincerely,

Jason Swank
Deputy Bureau Chief
Bureau of Marijuana Licensing
Enclosure

ARIZONA DEPARTMENT OF HEALTH SERVICES
PUBLIC HEALTH LICENSING SERVICES
BUREAU OF MARIJUANA LICENSING

ENFORCEMENT MEETING NOTIFICATION OF RIGHTS

Facility Name:	License#	PO/BM:
The Giving Tree Wellness Center of North Phoenix Inc.	00000021DCLU00461342	Lilach Power

Please initial after each section.

1. I understand that I have the right to reject the proposed resolution and may refuse to sign this Agreement. _____(initials)
2. This Agreement has been reviewed and approved by the Assistant Director. If this Agreement is changed, it will be returned to the Assistant Director for approval. _____(initials)
3. I understand that if I do not enter into an agreement at this time, the Program will refer this matter to Public Health Licensing Services ("Licensing") Enforcement Team and a legal order may be prepared and sent to me. _____(initials)
4. I understand that I have due process rights and can request a hearing before the Office of Administrative Hearings regarding any legal order issued by the Department's Director. _____(initials)

I hereby acknowledge that I have discussed the above statements with the Department and understand my rights with regard thereto.

Licensee: _____ Date: 07/23/2024
(Licensee's signature)

ENFORCEMENT MEETING AGREEMENT FORM

Facility Name:	License#	PO/BM:
The Giving Tree Wellness Center of North Phoenix Inc.	00000021DCLU00461342	Lilach Power

Department concern noted: The department is requesting $4,000.00 in Civil Money Penalties (CMP). Along with a written plan of correction for the violations.

Agreement:

(initials)_____ Licensee agrees to pay civil money penalties in the amount of $4,000.

(initials)_____ Licensee understands to not be in substantial compliance could result in further enforcement action up to and including denial of the renewal application.

	PLEASE PRINT NAME	SIGNATURE	DATE
Licensee:	Lilach Power		07/23/2024
Bureau Chief:	Kimberly Crawford	Kim Crawford	7/26/2024
Assistant Director:	Tom Salow	Thomas Salow	7/26/2024
Deputy Bureau Chief:	Jason Swank	Jason Swank	7/26/2024

ARIZONA DEPARTMENT OF HEALTH SERVICES
PUBLIC HEALTH LICENSING SERVICES
BUREAU OF MARIJUANA LICENSING

Lilach Power
701 West Union Hills Drive
Phoenix, AZ 85027
License # 00000021DCLU00461342

CIVIL PENALTIES

Statute/Rule	Violations	Penalty Assessment	Penalty Amount
A.A.C. R9-17-310(A)(2)(c	4/27/2022 2/13/2024 5/28/2024	Policy and Procedure	$2,000.00
A.A.C. R9-17-316(D)(1)	2/13/2024 5/28/2024	Inventory Control	$1,000.00
A.A.C R9-17-316(C)(1)	5/28/2024	Inventory Control	$1,000.00

Total			$4,000.00

Payments are to be made in the Facility Licensing Portal and shall be made within thirty (30) days from the execution date of the attached Enforcement Agreement unless an alternate payment schedule is arranged. Please review pages 115-117 of the PO/BM Handbook for instructions on how to make payment.